

MASTER SERVICE AGREEMENT

This Master Service Agreement (the "Agreement") is entered into as of March 14, 2026 (the "Effective Date") by and between Nimbus Retail Technologies, Inc., a Delaware corporation with its principal place of business at 400 Market Street, Suite 900, San Francisco, California ("Client"), and the undersigned independent contractor ("Contractor"). Client and Contractor are each referred to herein as a "Party" and collectively as the "Parties."

WHEREAS, Client wishes to engage Contractor to provide certain professional services; and WHEREAS, Contractor represents that it has the skill and experience necessary to perform such services, the Parties agree as follows.

1. Scope of Work

Contractor shall perform the software design and development services described in one or more statements of work (each, a "SOW") executed by both Parties and incorporated into this Agreement by reference. Each SOW shall identify the specific deliverables, milestones, acceptance criteria, and fees applicable to the work described therein. In the event of a conflict between the terms of this Agreement and any SOW, the terms of this Agreement shall control unless the SOW expressly states that it overrides a specific provision of this Agreement. Contractor shall perform all services in a professional and workmanlike manner consistent with generally accepted industry standards.

2. Payment Terms

Client shall pay Contractor the fees set forth in each applicable SOW. Contractor shall invoice Client for services rendered, and Client shall remit payment following receipt and review of each invoice. Client reserves the right to withhold payment for any amounts it disputes in good faith. All fees are stated in United States dollars and are exclusive of applicable taxes. Contractor shall be solely responsible for all taxes arising from payments made under this Agreement, other than taxes based on Client's net income.

3. Intellectual Property Assignment

Contractor hereby irrevocably assigns to Client all right, title, and interest in and to any and all inventions, works of authorship, designs, know-how, ideas, and information, whether or not patentable or copyrightable, that Contractor conceives, develops, or reduces to practice, including without limitation all intellectual property owned or created by Contractor prior to the Effective Date and all intellectual property Contractor develops during the term of this Agreement whether or not related to the services performed hereunder. Contractor waives all moral rights in the foregoing and agrees to execute any documents reasonably necessary to perfect Client's ownership.

4. Confidentiality

Each Party (the "Receiving Party") acknowledges that it may receive confidential and proprietary information of the other Party (the "Disclosing Party") in connection with this Agreement. The Receiving Party shall use the Disclosing Party's confidential information solely to perform its obligations under this Agreement and shall protect such information using the same degree of care it uses to protect its own confidential information of like importance, but in no event less than a reasonable degree of care. The obligations in this Section shall survive for a period of three (3) years following termination of this Agreement. Confidential information does not include information that is or becomes publicly available through no fault of the Receiving Party, was rightfully known prior to disclosure, or is independently developed without use of the Disclosing Party's confidential information.

5. Term and Termination

This Agreement shall commence on the Effective Date and continue until terminated as provided herein. Client may terminate this Agreement or any SOW at any time, for any reason or no reason, effective immediately upon written notice to Contractor. Contractor may not terminate this Agreement prior to the completion of all outstanding SOWs. Upon termination, Contractor shall immediately cease all work and deliver to Client all work product, whether complete or incomplete. Client shall have no obligation to pay for any work in progress that has not been accepted by Client as of the effective date of termination.

6. Limitation of Liability

Contractor shall be liable for any and all damages, losses, costs, and expenses of any kind arising out of or relating to this Agreement, the services, or any deliverables, without limitation as to amount and regardless of the theory of liability. Contractor's liability under this Agreement is not limited to the fees paid or payable under the applicable SOW. In no event shall Client be liable to Contractor for any indirect, incidental, special, consequential, or punitive damages, and Client's total liability under this Agreement shall not exceed the total fees paid by Client to Contractor in the three (3) months preceding the event giving rise to the claim.

7. Indemnification

Contractor shall defend, indemnify, and hold harmless Client and its officers, directors, employees, and agents from and against any and all claims, liabilities, damages, losses, and expenses, including reasonable attorneys' fees, arising out of or resulting from (a) Contractor's breach of this Agreement, (b) Contractor's negligence or willful misconduct, or (c) any claim that the deliverables infringe or misappropriate the intellectual property rights of any third party. Client shall promptly notify Contractor of any claim subject to indemnification and shall reasonably cooperate with Contractor, at Contractor's expense, in the defense of such claim.

8. Non-Competition

During the term of this Agreement and for a period of three (3) years following its termination, Contractor shall not, directly or indirectly, whether as an employee, consultant, owner, or otherwise, engage in, provide services to, or hold any interest in any business anywhere in the world that provides software development, consulting, or technology services of any kind. Contractor acknowledges that this restriction is reasonable and necessary to protect Client's legitimate business interests and that any breach would cause irreparable harm to Client.

9. Dispute Resolution

Any dispute arising out of or relating to this Agreement shall first be submitted to good-faith negotiation between senior representatives of the Parties. If the dispute is not resolved within thirty (30) days, either Party may submit the dispute to binding arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules. The arbitration shall take place in San Francisco, California, and shall be conducted in the English language before a single arbitrator. Judgment on the award rendered by the arbitrator may be entered in any court having jurisdiction. Each Party shall bear its own costs and attorneys' fees, and the Parties shall share equally the fees of the arbitrator.

10. General Provisions

This Agreement, together with all SOWs executed hereunder, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior or contemporaneous understandings. This Agreement may be amended only by a writing signed by both Parties. This Agreement shall be governed by the laws of the State of California, without regard to its conflict-of-laws principles. If any provision of this Agreement is held to be unenforceable, the remaining provisions shall remain in full force and effect. Neither Party may assign this Agreement without the prior written consent of the other Party, except that Client may assign this Agreement to a successor in connection with a merger, acquisition, or sale of substantially all of its assets.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.